BY ORDER OF THE COMMANDER
4TH FIGHTER WING

SEYMOUR JOHNSON AIR FORCE
BASE INSTRUCTION 31-218

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Security

MOTOR VEHICLE TRAFFIC SUPERVISION AND TRAFFIC CODE

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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The purpose of this publication is to implement the Motor Vehicle Traffic Plan as outlined in Department of the Air Force Instruction (DAFI) 31-218, *Motor Vehicle Traffic Supervision*. It assigns responsibilities and establishes procedures for motor vehicle traffic supervision for SJAFB, North Carolina. This includes, but is not limited to granting, suspending, or revoking the privilege to operate a privately owned vehicle (POV); administration of driver performance records; and police traffic supervision. This supplement requires the collection and maintenance of information protected by the Privacy Act of 1974 authorized by 50 United States Code 797. It applies to all units/personnel assigned to Seymour Johnson Air Force Base (SJAFB), whether in tenant/reserve/guard or active duty status. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 through appropriate chain of command. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with AFI 33-322, *Management and Information Governance Program*, and disposed of in accordance with Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the Air Force.

SUMMARY OF CHANGES

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1. PROGRAM OVERVIEW: PURPOSE

1.1. **Overview.** This instruction outlines the Seymour Johnson AFB traffic code.

1.1.1. This instruction and the traffic laws of the State of North Carolina form the basis for the traffic control and enforcement on this installation. Since SJAFB is a proprietary jurisdiction installation, the Motor Vehicle Code and laws of North Carolina are applicable and enforceable on this installation. They are hereby specifically incorporated by reference into this instruction.

1.2. **Applicability.** This instruction applies to the following:

1.2.1. Department of Defense (DoD), and civilian personnel assigned to or visiting SJAFB, North Carolina, their dependents, and to all owners and operators of a motor vehicle on SJAFB.

2. ROLES AND RESPONSIBILITIES

2.1. The Commander, 4th Fighter Wing (4 FW/CC) delegates authority over driving suspensions and revocations to the Commander, 4th Mission Support Group (4 MSG/CC) and to the Deputy Commander, 4th Mission Support Group (4 MSG/CD) in absence.

2.2. The 4th Security Forces Squadron (4 SFS) and all assigned augmentees will enforce all traffic regulations on SJAFB.

2.3. Stopping and Inspecting Personnel or Vehicles.

2.3.1. Security Forces may stop vehicles on military installations based on the regulations and authorities given from Title 10 U.S.C. MCM Uniform Code of Military Justice. The following principles govern the stopping of motor vehicles:

2.3.1.1. On-base traffic stops and inspections (other than at entry gates and restricted areas) of POVs are authorized when there is a reasonable basis to believe they are necessary to enforce a traffic regulation or when there is suspicion of criminal activity. This is based on Title 50, Title 18, and Title 10 USCs.

2.4. Goldsboro Police Department (GPD) will be notified to cite and/or arrest all civilians detained on the installation, to include military dependents, with the exception of minor vehicle infractions. 4 SFS can issue citations for minor traffic infractions to civilians and dependents on base.

3. INDIVIDUAL REQUIREMENTS

3.1. DoD licensing procedures are contained in DoDI 4500.36, *Acquisition Management, and Use of Non-tactical Vehicle*s (NTVs). AF policy and procedures for testing and licensing vehicle and equipment operators is outlined in AFI 24-301, *Ground Transportation*.

3.1.1. Operators of Government and private motorcycles shall be properly licensed to operate motorcycles on public highways.

3.1.2. Drivers of vehicles authorized to operate on a flight line/airfield shall be certified and operate In Accordance With (IAW) DAFI 13-213, *Airfield Driving*, and the installation flight line driving instruction.

3.1.3. All privately owned vehicles on SJAFB must display a valid state license plate.

3.2. Operator and Passenger Protection

3.2.1. Seat Belts and Occupant Restraints

3.2.2. All persons listed in **paragraph 1.2.1** operating or riding in motor vehicles shall wear safety belts as prescribed by the manufacturer. Individuals shall not ride in seating positions where safety belts have not been installed, have been removed, or have been rendered inoperative. This does not apply to vehicles not designed for seat belts such as passenger seating in buses, some off-road motor vehicles, combat/tactical vehicles not designed with belts, vehicles exempt due to date manufactured, or when riding in the cargo compartment of a vehicle. Air Force Office of Special Investigation (AFOSI) on-duty agents and Security Forces (SF) not driving, but performing protective services operations are exempt and will use seat belts at their discretion.

3.2.2.1. Entry onto the installation may be denied to any person refusing to properly fasten their seat belt.

3.2.2.2. There may be no more occupants in any vehicle than there are individual seat belts.

3.2.2.3. To the maximum extent possible personnel shall be transported in passenger vehicles such as sedans, sport utility vehicles, station wagons, or buses. At no time will persons ride in the cargo area of a motor vehicle for the purpose of manually securing cargo while the vehicle is in motion. Personnel may be transported in pick-up trucks without fixed seats, for short distances on SJAFB only if each passenger remains seated within the body of the vehicle, all installed seat belts are in use, and the vehicle cargo area has no open sides. However, efforts to procure a safer means of transportation must be exhausted before cargo areas are used to transport personnel. Authorized non-use of seatbelts: Operators of a motor vehicle with passengers riding inside the bed of a truck (IAW+ N.C.G.S. 20-135.2B), provided the person(s) is/are seated on the bed or platform of the vehicle with all extremities inside the bed, and not resting against the tailgate of the vehicle. Children under 12 are required to have a supervising adult present in the bed of the vehicle.

3.2.2.4. The operator of any vehicle is responsible for informing all passengers of applicable safety belt, child safety seat, and personal protective requirements of this instruction.

3.2.2.5. SJAFB traffic safety programs require the use of child safety seats consistent with North Carolina General Statute (NCGS) 20-137(a1).

3.2.2.6. Seat belts shall be maintained in a serviceable condition and shall bereadily available for driver and passenger use.

3.3. Motorcycles and Mopeds. For motorcycles and other self–propelled, open, 2- wheel, 3wheel, and 4-wheel vehicles powered by a motorcycle–type engine, the following traffic rules apply: When military mission tactics, techniques and procedures conflict with these requirements, a user developed Risk Management analysis will be used to determine the most appropriate balance of mission and safety. When non-compliance is found necessary due to military mission, these actions will be documented and approved by the 4 FW/CC.

3.3.1. All motorcycles entering the installation are required to have 2 mirrors, one attached to each side of the handlebars. Headlights will be on at all times when in operation IAW DAFI 31-218.

3.3.2. Passengers. Passengers are authorized on government owned motorcycles, All Terrain Vehicles, Utility Terrain Vehicles or three-wheeled vehicles when operational need exist and the vehicle is designed to carry a passenger.

3.3.3. PPE will be IAW DODI 6055.04 and AFI 91-207 *The US Air Force Traffic Safety Program* as outlined below:

3.3.3.1. Head Protection. A helmet, certified to meet current Federal Motor Vehicle Safety Standard No. 218 (DOT), United Nations Economic Commission for Europe (UNECE) Standard 22.05, British Standard (BS) 6658, or Snell Standard M2005, or higher, shall be worn and properly fastened under the chin. Commanders may authorize use of combat helmets for operating tactical vehicles (e.g., motorcycles and ATVs) during operations and training based on a formal risk assessment IAW AFI 90- 802, *Risk Management*. If time critical, a real time risk assessment will be used.

3.3.3.2. Eye Protection. Goggles, wrap around glasses, or a full-face shield designed to meet or exceed American National Standards Institute (ANSI) Standard Z87.1, UNECE 22.05, or BS6658 in effect when manufactured, will be properly worn. A windshield does not constitute proper eye protection.

3.3.3.3. Protective Clothing. Wearing of long-sleeved shirt or jacket, long trousers and full fingered gloves or mittens is required. Gloves or mittens will be made from leather or other abrasion-resistant material. Wearing of a motorcycle jacket and pants constructed of abrasion resistant materials such as leather, Kevlar® and/or Cordura® containing impact absorbing padding is strongly encouraged. Riders will select PPE that incorporates fluorescent colors and retro-reflective material.

3.3.3.4. Foot Protection. Foot protection includes sturdy over-the-ankle footwear that affords protection for the feet and ankles.

3.3.3.5. Tactical Motorcycle and ATV Rider Protection. All on-duty riders of government owned motorcycles and ATV operators during off-road operations should also wear knee pads, shin guards and padded full-fingered gloves. Note: Special on duty requirements may dictate limited compliance.

3.4. Use of Headphones and Earphones

3.4.1. Use of these devices is prohibited while operating a motor vehicle. The wearing of any other portable headphones, earphones, or other listening devices (except for hands-free cellular phones as required by the DAFI 31-218) while operating a motor vehicle is prohibited.

3.5. Pedestrian and Bicycle Safety

3.5.1. Individuals should not jog, run, or walk on roadways with high traffic density and during peak traffic periods. Road guards or safety spotters will be utilized to safely control traffic for formation runs or group running events.

3.5.2. When jogging or running on roadways at night or in inclement weather (fog, rain, sleet, snow), personnel will wear retro reflective clothing or devices visible from the front and back.

3.5.3. All individuals who are exposed to traffic hazards as part of their assigned duties shall wear a highly visible vest/jacket during the day and fluorescent or retro reflective vest/jacket at night. This guidance only applies to troop formations only to the degree determined necessary to maintain formation visibility to traffic.

3.5.4. All persons who ride a bicycle, including motor driven bicycles, on SJAFB shall wear a properly fastened and approved (Consumer Product Safety Commission (CSPSC), ANSI, or Snell Memorial Foundation) bicycle helmet. Workers riding bicycles in areas that require the use of ANSI approved helmets (hard hats) for protection from falling and flying objects are allowed to use those helmets if properly fastened under the chin.

3.5.5. Every person riding a bicycle in a street shall be subject to all rules of the road as established in DAFI 31-218, this operating instruction, and in the North Carolina Traffic Codes.

3.5.6. All bicycles shall be equipped with adequate brakes.

3.5.7. All bicycles ridden during the hours of darkness shall be equipped with an operating headlamp and rear red light or rear reflector.

3.5.8. When possible, bicycles will be ridden in single file along the extreme right side of the roadway or on established bicycle pathways.

3.5.9. Bicycles will not be used to carry more persons than the number for which they were designed and equipped. The wearing of headphones is prohibited. Sponsors of children who ride bicycles on roadways or bicycle pathways are responsible for the conduct of these children. Sponsors will ensure that dependents and visitors are fully aware of and understand the provisions of this regulation as supplemented.

3.5.10. People-powered vehicles, excluding bicycles, will not be operated on any base roadways. “People-Powered Vehicles” are those which are powered by the pedal action of the operator(s).

3.6. Non-Motorized Transportation Devices. These devices, including skateboards, kick-scooters, and roller-skates, are prohibited on SJAFB roadways except for incidental road access associated with pedestrians and will comply with all pedestrian related traffic laws. These devices, unless determined to be a hazard to pedestrians, will use designated pedestrian walkways and paths. Helmet wear is required on SJAFB.

3.7. Enforcement

3.7.1. The use of radar detection equipment to indicate the presence of speed measuring devices or to transmit simulated erroneous speeds is prohibited on DoD installations. Entry controllers will inform vehicle operators entering the installation that operation of such devices is prohibited and advise them to remove the device from its operational location and secure it prior to allowing the vehicle entry to the installation.

3.7.2. It is unlawful to operate a motor vehicle on SJAFB with a sunscreen device or tinted film on its windshield or other windows unless the sunscreen device or tinted film displays

an installer's sticker certifying that it complies with the law and does not reduce the total light transmission of the window to less than 35% and does not have a reflectance of light exceeding 20%. NC allows for SUV and trucks to have rear windows completely blacked out.

3.7.3. It is unlawful on any street, road, or parking lot for any person to utilize or operate a radio, tape player, or other mechanical sound making device, portable or installed, when the sound produced is plainly audible from a distance of 50 feet or more. This does not apply to automobile and motorcycle horns when used as an emergency signaling device.

4. TRAFFIC PLANS AND CODES

4.1. Installation Speed Limits. Regardless of posted speed limits or the speed limits posted in the following paragraphs, no person will operate a motor vehicle on SJAFB at a speed in excess of what is reasonable and safe for surface, weather, visibility, and existing traffic conditions. Vehicle operators will reduce speed and proceed with extreme caution while driving through congested areas, or when approaching children at play.

4.1.1. The speed limit on SJAFB is 30 miles per hour (mph) except where otherwise posted.

4.1.2. The speed limit in vehicle parking areas is 5 mph.

4.1.3. The speed limit for tractors, tugs, forklifts, vehicles towing equipment, and special purpose vehicles is 15 mph, unless posted as a lower speed limit.

4.1.4. Flight line speed limits are established in SJAFBI 11-250, *Airfield Operations*.

4.1.5. The speed limit within School Crossing Zones is 5 mph during school gate hours.

4.1.6. The speed limit approaching the installation entry control points, from both on and off base, is 15 mph. 5 mph where speed humps and serpentines are located.

4.2. Right of Way

4.2.1. At intersections where no traffic control devices are present, the first vehicle to enter the intersection has the right-of-way. When two vehicles approach at the same time, the vehicle going straight through the intersection or the vehicle to the right will have the right-of-way.

4.2.2. Pedestrians must cross streets at designated crosswalks. If a vehicle is approaching the crosswalk, the pedestrian must wait for the vehicle to pass or wait until the vehicle comes to a complete stop before entering the crosswalk. Vehicles must yield the right-of way to the pedestrians that have entered a crosswalk.

4.2.3. Drivers of motor vehicles must yield the right of way to emergency vehicles exhibiting flashing emergency lights or sounding an audible siren, horn, or bell. Drivers of vehicles will yield the right-of-way by immediately driving to a position parallel to the right-hand edge of the roadway, clear of intersections, and stop. The driver will remain stopped until all emergency vehicles have cleared the area. Emergency vehicles responding to an emergency must provide audible warnings at least 100 feet prior to entering an intersection. Prior to proceeding through an intersection, the driver of the emergency vehicle will slow down or stop to ensure the intersection is clear and all other vehicles are in fact yielding to the emergency vehicle. Emergency vehicles responding to an incident

will respond in a manner that will not pose a safety hazard to themselves or others on the road.

4.2.4. Stopping for Reveille or Retreat. The driver of a vehicle shall immediately pull to the right shoulder of the roadway or traffic lane and stop when Reveille or Retreat is sounded. The vehicle will not be placed into motion until the last note of all music played has sounded or unless directed by an authorized traffic controller.

4.2.5. Owners or drivers of POVs are prohibited from using any red or blue lights, siren, or bell, which may create the appearance of an emergency vehicle.

4.2.6. Drivers shall yield the right-of-way in parking lots at the appropriately marked yield lines. Yield lines are defined as those painted lines, normally white in color, found at intersections in parking lots, which serves notice that the operator must yield to vehicles proceeding on thoroughfares on which yield lines are not present.

4.2.7. All drivers will operate vehicles within the boundaries of clearly marked traffic lanes and parking spaces.

4.2.8. Traffic cones when used in direct impact to traffic flow are considered traffic control devices. Attempts to circumvent established avenues for travel will be cited with a Department of Defense (DD) Form (FM) 1408, *Armed Forces Traffic Ticket.*

4.3. Traffic Control Devices

4.3.1. No person shall erect, remove, deface, or destroy any traffic control device without obtaining permission from the Defense Force Commander and 4 Civil Engineering Squadron (4 CES).

4.3.2. Upon approval of the Traffic Management Board, the 4 CES will install necessary traffic control devices.

4.4. Transportation of Privately Owned Weapons

4.4.1. Privately owned weapons will be transported IAW SJAFB 31-101, Force Protection Plan (FPP)

4.5. Parking

4.5.1. Parking of motor vehicles is prohibited on all streets, roadways, and shoulders that have not been designated by sign or painted markings as parking areas, except on streets in the family housing area.

4.5.2. Parking is prohibited within 15 feet of any intersection or fire hydrant, in front of any trash receptacle, along any yellow curb, within or blocking fire lanes, blocking of driveways or sidewalks, and blocking any roadways to prevent the normal flow of traffic.

4.5.3. Parking in excess of time specified by limited time parking signs is strictly prohibited.

4.5.4. Vehicles must be parked with the flow of traffic, with the exception of family housing areas.

4.5.5. In the family housing areas, vehicles will be parked on the opposite side of the street from fire hydrants.

4.5.6. Vehicles parked on the street in housing will not be parked within six (6) feet of a driveway.

4.5.7. Parking of motor vehicles is prohibited on any grass or seeded area, upon any sidewalk, or unpaved surface unless authorized by signs or directed by the 4 SFS or higher authority.

4.5.8. Utilization of Parking Lots. Parking lots are provided for the convenience of personnel residing or working in a building adjacent to them. Privately owned vehicles which are abandoned in parking lots will be removed, at the cost of the owner, and disposed of IAW DoDM 4160.21 Volume 1*, Defense Material Disposition: Disposal Guidance and Procedures*.

4.5.9. Parking of boats, over-sized vehicles, trailers, and vehicles for sale are prohibited in base parking lots. Exception: Lodging residents may park in the Heritage Hall overflow lot located at the rear of the Heritage Hall for up to 72 hours. Boats, campers, and trailers will not be stored on the streets of Housing. The only exception to this is these vehicles are allowed to park in the street or driveways of Housing for 48 hours before and after use. Lodging guests who need to park oversized vehicles or boats are directed to pick up a placard at lodging. The lodging placard identifies the occupant as a lodging guest and identifies the end of the 72-hour parking period.

4.5.9.1. The Long-Term Storage Lot is the only authorized location for parking of boats and over-sized vehicles longer than 72 hours. Access is controlled by the Outdoor Recreation Office.

4.5.10. The 4 FSS approves all vehicles placed in the vehicle resale lot. The 4 FSS Vehicle resale lot, adjacent to the Army Air Force Exchange Service (AAFES) Shoppette, is the only area authorized for leaving a vehicle for the purpose of selling the vehicle. If it is determined that a vehicle is located in a parking area other than the resale lot for the sole purpose of sale, SF will place a citation on the vehicle. After 72 hours, a DD Form 2504, *Abandoned Vehicle Notice,* will be placed on the vehicle. If the problem still exists after 72 hours, the vehicle will be towed and impounded at the owner's expense. Note: This requirement includes boats, jet skis, trailers and RVs IAW DoDM 4160.21 Volume 1*, Defense Material Disposition: Disposal Guidance and Procedures*.

4.5.11. Parking is prohibited along the front curb of the Commissary and Base Exchange.

4.5.12. Organizations requesting changes or new reserved parking spaces are required to submit a package consisting of a letter signed by the Commander or Agency Chief responsible for the parking lot, detailed drawing of the new or revised parking plan, and a completed AF Form 332, *Base Civil Engineer Work Request*. The package will be coordinated through 4 SFS/Police Services (S3P), 4 CES and then to the 4 MSG/CC for approval. The final package is forwarded to 4 CES, Traffic Engineering. They will produce the parking space plates. For changes to existing reserved spots, units may submit an abbreviated request consisting of a letter signed by the unit commander listing the requested slots with their locations and a completed AF Form 332.

4.5.13. Only 4 CES-designed metal plates will be used to mark the reserved slots.

4.5.14. The organization is responsible for canceling reserved slots as they become unnecessary and notifying 4 CES when the slot is no longer needed.

4.5.15. Security Forces may cite vehicles for parking in a reserved parking space when the vehicle is unauthorized to be in that space, or upon request by the person whose spot was improperly used. Only reserved parking spots designated IAW **paragraph 5.5.7** or state law will be enforced. The use of a vehicle immobilization device on a cited vehicle will only be utilized at the determination of the Defense Force Commander (DFC).

4.5.16. The unit commander exercising jurisdiction over a particular facility or building may appoint parking wardens for the adjacent parking area.

4.5.17. Units who elect to utilize parking wardens will appoint them as such via appointment memorandum to 4 SFS/S5R. There will be a primary and an alternate warden from each unit and they will be in the grade of E-5 and above or if civilian, GS-8 and above.

4.5.18. 4 SFS/S5R (Reports and Analysis) will ensure parking wardens are trained on the base parking rules and are provided instructions on how to write the DD Form 1408.

4.5.19. Parking Wardens will enforce compliance with these parking rules and regulations by writing parking tickets and/or calling Security Forces to report a vehicle for towing. In addition to all required information, DD Form 1408s issued by parking wardens will have the following information; the pink copy will instruct the violator to contact the warden who issued the ticket (with how or where to reach the parking warden). In the remarks section of the white copy write the Vehicle Identification Number (VIN). White and yellow copies of completed/voided DD Forms 1408 will be turned into 4 SFS/S5R no later than the following duty day for processing.

4.5.20. Tickets that are incomplete, i.e., as no VIN or State Vehicle License Plates, or that were issued by personnel not designated as parking wardens will not be processed and will be returned to the unit. Parking wardens will only issue tickets for areas under the control of their commander.

5. REBUTTING TRAFFIC CITATIONS/FIX-IT TICKETS

5.1. If the violator wishes to make a written rebuttal, the violator must notify S5R within 5 duty days of when receiving the ticket and must submit a rebuttal letter articulating his/her position to the DFC through S5R within 14-days of receipt of the ticket. The letter must be endorsed by his/her Commander. The purpose of this endorsement is to ensure commander-level involvement. The commander must add comments supporting the violator's guilt or innocence.

5.1.1. S5R will log the DD Form 1408 into a local suspense tracking system, Air Force Justice Information System (AFJIS). and obtain the answer to the following question to give to the rebuttal authority:

5.1.2. If the rebuttal authority allows, does the offender wish to make a personal appearance or produce a written rebuttal?

5.1.3. S5R places the yellow copy of the DD Form 1408 in the suspense file pending disposition.

5.1.4. The completed package will be forwarded to the DFC for his/her annotation/ recommendation and forwarded to the 4 MSG/CC final decision. Once the rebuttal authority has made a decision, S5R will notify the violator of the final outcome of his/her ticket rebuttal in writing. if the 4 MSG/CC concurs with the rebuttal the ticket is void and no action will be taken.

5.1.5. For all tickets where there is no rebuttal or the rebuttal is non-concurred by the 4 MSG/CC complete blocks 19-23 on the back of the white copy and annotate any prior history, points assessed and the suspense date. In the Report of Action Taken on Traffic Violation, black out the words 'No Action Taken'; this is not an option. If applicable, attach the driving history for the violator from AFJIS. Forward the white copy to the violator's commander for action with a 14 day suspense. If a DD Form 1408 was issued during the course of an accident investigation, attach a copy of the accident report to the ticket when it is sent for command action.

5.1.6. If response on command action is not received by the due date, forward a Notice of Late Suspense memorandum, which can be electronic, providing an additional 7-day suspense. If the additional suspense is not met, send a Notice of Second Late Suspense memorandum to the unit commander with a courtesy copy to the group commander. Suspense extensions will be granted by the DFC on a case-by-case basis. Notices of Late Suspense can be completed electronically as long as S5R maintains a copy of the read receipt.

5.1.7. Once finalized, 4 SFS/S5R will record command action and enter it into the AFJIS case database.

5.2. The 4 SFS will coordinate with local law enforcement agencies to identify traffic violations specified in this instruction and the traffic laws of North Carolina which occur off base by personnel affiliated with the base. This information will be forwarded to the DFC, and squadron commanders by S5R. Squadron commanders may take administrative action to help correct unsafe vehicle operations. The 4 MSG/CC may suspend or revoke installation driving privileges based on unsafe driving behavior; including but not limited to driving without proper insurance, reckless driving, driving with an invalid license, and driving while under a previous suspension. Driving suspensions and revocations based on off-base driving violations will be processed in the same manner as on base driving violations and follow state timelines of suspension IAW DAFI 31-218.

5.2.1. When issuing a citation for a "Fix-it-Ticket" each violation will be written on a separate DD Form 1408. When a "Fix-it-Ticket" is written, patrolman will write, stamp or place a label on the back of the pink copy given to the violator with the following in **para 5.2.2** below.

5.2.2. "This is a Fix-it-Ticket. Report to Security Forces Reports and Analysis Branch (S5R), Bldg. 5005, within 3 duty days with proof that you have fixed the infraction written on the citation and the citation will be voided. If you do not provide proof that you fixed the infraction written on the citation, the citation will be processed and added to your driving record".

Table 1. "Fix-it-Tickets"

Expired Registration
Expired Inspection
Unable to provide proof of Driver's License
Any Visible broken Inspection Item
Proof of Insurance (Issue Insurance Letter as well)
Unsigned Registration (Fix on the spot, no citation needed)

6. SUSPENSIONS/REVOCATIONS

6.1. Personnel who are cited for three non-moving violations within any six-month period will have their base driving privileges suspended for 90 days. The following are considered nonmoving violations on SJAFB: Performing unauthorized automobile maintenance, improper disposal of petroleum, oil, and lubricant products, failure to register vehicle, unauthorized modifications or alterations, failure to maintain safety standards, illegal parking, and/or interfering with the safe flow of traffic. This list is not all-inclusive and other non-moving violations can be issued if the facts and circumstances warrant.

6.2. Suspensions in Attachment 2, table A2.1 of SJAFBI 31-218 will begin 3 duty days from the receipt of the letter issued by Security Forces. Any request for an appeal should be submitted through the DFC to the MSG/CC in writing within 3 duty days. If an appeal is submitted, the suspension will be stayed until a decision is made on the appeal. If an individual is cited for an offense that requires an automatic suspension/revocation in addition to speeding, the suspension/revocation will run consecutively.

6.3. Reckless Driving. Any person found driving in a reckless manner as defined in Article 113 UCMJ or N.C.G.S., **Chapter 20**, will have their driving privileges suspended for six months. N.C.G.S 20-140 defines reckless driving as the following: Any person who drives any vehicle upon a highway or any public vehicular area carelessly and heedlessly in willful or wanton disregard of the rights or safety of others shall be guilty of reckless driving. Any person who drives any vehicles upon a highway or any public vehicular area without due caution and circumspection and at a speed or in a manner so as to endanger or be likely to endanger any person or property shall be guilty of reckless driving. Active Duty personnel who are convicted of reckless driving on or off base will have their driving privileges suspended for six months.

6.4. Any person cited for exceeding any posted speed limit by 20 mph on base will have their driving privileges suspended for six months.

6.5. Insurance. The owner of a vehicle operating or allowing their vehicle to be operated without insurance will receive a 30 days suspension of base driving privileges.

6.6. Cell Phone Use.

6.6.1. Vehicle operators found using a cell phone on SJAFB will receive a citation for the first offense and will have their driving privileges suspended for 30 days for a second and 90 days for a third violation. Vehicle operators on SJAFB and operators of government owned, leased, or rented vehicles, on or off SJAFB, shall not use cell phones while the vehicle is in operation, except when using a hands-free device or hands-free operating mode. When possible, vehicle operators should safely pull over and place the vehicle in

park before using any cell phone. Land Mobile Radios (LMR) are primarily listening devices and are not restricted.

6.6.1.1. IAW Presidential Executive Order 13513, Federal employees shall not engage in text messaging when driving a GOV, when driving POV while on official Government business, or when using electronic equipment supplied by the Government while driving.

6.7. Seat Belts. Vehicle operators not wearing seat belts on SJAFB will receive a citation for the first offense and will have their driving privileges suspended for 30 days for a second and 90 days for a third violation. Vehicle operators are also subject to suspension if passengers in the vehicle are not wearing a seat belt, or children are not properly restrained in a child safety device. If an individual is cited for an offense that requires an automatic suspension/revocation in addition to not wearing seat belts, the suspension/revocation will run consecutively.

6.8. Speeding in Housing. Individuals found speeding in the MFH area on SJAFB will receive a citation. Exceeding the speed limit by 5-9 mph will result in a citation and 3 traffic points. Exceeding the speed limit by 10-14 mph will have their driving privileges suspended for 30 days. Exceeding the speed limit by 15-19 mph will have their driving privileges suspended for 90 days.

6.9. Due Process. An administrative hearing to address extenuating or mitigating factors that resulted in suspension or revocation of base driving privileges due to a Driving While Intoxicated (DWI), or to address the suspension or revocation's impact on duty performance, may be requested within 14 calendar days of receipt of the notification of suspension/revocation.

6.10. It is unlawful for a person to operate a motor vehicle on a highway or public vehicular area having a Blood Alcohol Content (BAC) of .08 percent or higher.

6.10.1. Upon approval by the military magistrate, the offender will be ordered not to drive any motor vehicle on base by 4 SFS personnel and will report to the 4th Security Forces Squadron Reports and Analysis Section (4 SFS/S5R) no later than (NLT) the next duty day, accompanied by their First Sergeant or Supervisor, to sign the Preliminary Suspension of On-Base Driving Privileges letter.

6.10.2. When an individual does not give consent, they have violated the implied consent provisions. Upon refusal the individuals driving privileges are automatically revoked IAW DAFI 31-218. A military magistrate can order a search based on probable cause.

6.10.3. It is unlawful for a person under the age of 21 to operate a motor vehicle after consuming alcohol (any BAC level). A person under the age of 21 found to be driving after consuming alcohol will be subject to the same penalties as a person over the age of 21 found to be operating a motor vehicle while intoxicated.

6.10.4. In accordance with North Carolina General Statute 20-138.2, *Impaired Driving in a Commercial Vehicle,* it is illegal for a person to operate a commercial motor vehicle while under the influence of an impairing substance; or with an alcohol concentration of 0.04% or more.

6.10.5. If reasonable suspicion exists to believe a civilian was driving under the influence of alcohol or drugs, 4 SFS will contact GPD and release the driver to GPD for processing. No further action will be taken by 4 SFS after the individual is released to GPD.

6.10.6. If probable cause exists to believe a member of the armed forces was driving under the influence of alcohol or drugs, 4 SFS will request the driver to submit to Standardized Field Sobriety Tests (SFST), the National Highway Traffic Safety Administration (NHTSA) and DD Form 1920, *Alcohol Influence Report.* If the driver fails the FST, Security Forces will advise the member of the Implied Consent Policy and ask the member to provide a sample of their breath and/or blood. Security Forces personnel certified to operate Intoxilizer equipment will be contacted to have military member supply a breath sample. If a certified Intoxilizer operator is unavailable or if the on-base Intoxilizer is out of commission, Security Forces may contact the GDP or North Carolina State Highway Patrol (NCSHP) for availability to test the military member's breath sample. Blood will not be involuntarily extracted from a driver who refuses to provide a sample simply because they have given implied consent. Instead, 4 SFS will coordinate with 4th Fighter Wing legal office (JA) and seek to obtain necessary search authorization from the 4 MSG/CC. Search authorizations for a Blood Alcohol Test (BAT) will be requested via AF Form 1176, *Authority to Search and Seize*. If granted during duty hours, transport subject to the 4th Medical Group Clinic for a blood draw. After duty hours, contact the on-call lab technician.

6.10.7. Any military/civilian personnel assigned to SJAFB and their dependents who are apprehended for DWI (any vehicular alcohol/drug related incident) off- base by any law enforcement agency will report to the 4 SFS/S5R, with the member's First Sergeant, supervisor, or sponsor to acknowledge receipt of the Preliminary Suspension of On-Base Driving Privileges letter NLT the next duty day after returning to base. The preliminary suspension will become a revocation upon conviction, non-judicial punishment, or a military or civilian administrative action resulting in the suspension of civilian driver's license/privileges for intoxicated driving.

6.10.8. Preliminary suspensions/revocations of base driving privileges based on a suspected alcohol/drug related driving offense are effective on the date issued, and are not stayed pending appeal procedures. Requests for an administrative hearing must be routed through and signed by the unit commander. The unit commander is required to provide their recommendation on the administrative hearing. After obtaining proper administrative hearing coordination, requests can then be submitted in writing through the DFC. The request will provide full justification in detail requesting the overturning of the ruling. The letter is forwarded to the 4 MSG/CC for a personal hearing. This hearing should be held within 14 calendar days of the MSG/CC receiving the request for the administrative hearing. The Preliminary Suspension/ Revocation remains in effect until the MSG/CC makes a final decision. If the MSG/CC determines that the person's driving privileges should be reinstated, then the suspension/revocation will be removed from the 4 SFS/S5R records.

6.10.9. Implied Consent to Blood, Breath, or Urine Tests. Persons who drive on the installation shall be deemed to have given their consent to evidential tests for alcohol or other drug content of their blood, breath, or urine when lawfully stopped, apprehended, or

cited for any offense allegedly committed while driving or in physical control of a motor vehicle on military installations to determine the influence of intoxicants.

6.11. Suspended, Canceled, or Revoked Licenses. Persons whose state driver's license has been suspended, canceled, revoked, or denied are required to inform their commanders or First Sergeant, who will in turn notify 4 SFS/S5R the next duty day.

6.11.1. License Invalid During Suspension. Residents and non-residents whose driver's license or rights/privileges to operate a motor vehicle in the state of North Carolina, or any other state, have been suspended or revoked may not operate a motor vehicle on SJAFB.

6.11.2. Personnel with suspended or revoked driving privileges may apply for a modification to their suspension or revocation at any time during the period of suspension or revocation. Modifications will be considered for conditions of extreme hardship and an absence of other workable alternatives. The request will be submitted in writing through the DFC who will forward the package to the 4 MSG/CC. The request must provide full justification in detail of the reasons for modifying the suspension or revocation. The decision to grant restricted driving privileges will be based on mission needs, special circumstances resulting in hardship, and the aggravating and/or mitigating circumstances surrounding the incident. Note: Modification to suspensions or revocations will not be granted for those persons whose driving privileges have been suspended by their state licensing agency.

6.11.3. Upon the completion of a suspension or revocation, reinstatement of driving privileges shall be automatic. If the suspension or revocation was due to an alcohol related driving incident the request must be in writing and endorsed by the unit commander. The unit commander has the option of ensuring the individual successfully completes Course V, Driver Improvement Program, as outlined in AFI 91-207, *The US Air Force Traffic Safety Program.* This course is not intended to be used to rehabilitate but as an educational tool. This course must be administered by 4 FW/Safety (SE). If the suspension or revocation was due to driving while impaired, Course V is not required, but successful completion of the Alcohol and Drug Abuse Prevention and Treatment (ADAPT) program must be verified through the 4th Medical Group. If the suspension or revocation was due to not having proper insurance or a valid driver's license, the unit commander must ensure there is proof of compliance prior to forwarding the individuals request for reinstatement of driving privileges to 4 SFS/S5R. Driving privileges for all other suspensions and revocations will be reinstated once the suspension/revocation period has ended.

6.11.4. When personnel are selected for reassignment, S5R receives a notification through Virtual Military Personnel Flight (vMPF). 4 SFS/S5R will conduct a check of AFJIS. If the person listed on the orders has a driving/criminal record, transfer the driving/criminal history through AFJIS to the gaining base. Forward all driving/criminal records on file to the S5R at the gaining base. S5R will also transfer AFJIS records to gaining bases through AFJIS when an individual is reassigned.

7. IMPOUNDING PRIVATELY OWNED VEHICLES (POV)

7.1. Any person granted the privilege to operate or register a motor vehicle on a military installation shall be deemed to have given his or her consent for the removal and temporary impoundment of the POV when it is parked illegally or for unreasonable periods, as determined

by the installation commander or applicable authority, interfering with military operations, creating a safety hazard, disabled by accident, left unattended in a restricted or controlled area, or abandoned. Such persons further agree to reimburse the United States for the cost of towing and storage should their motor vehicle be removed or impounded. Existence of these conditions will be determined by the installation commander or designee.

7.1.1. "Unreasonable periods" is defined as any motor vehicle left for more than 3 business days or 5 calendar days unattended or unmoved without prior arrangements with or notification to the 4 SFS. Vehicles derelict and or abandoned, for the time period previously stated, will be cited by SF personnel. 72 hours after the vehicle is cited, a DD Form 2504/Abandoned Vehicle Notice will be placed on the vehicle. 72 hours after the DD Form 2504 is placed on the vehicle, it will be subject to towing and impoundment.

7.1.2. The term “Abandoned” is defined as: Giving up by leaving, ceasing to operate, or surrendering one’s claim or right to the vehicle in question.

7.2. All requests from civilian agencies for the Air Force to impound an on-base vehicle will be routed through the servicing Staff Judge Advocate (SJA) and DFC.

7.3. The impoundment of vehicles is inappropriate if other reasonable alternatives exist:

7.3.1. When possible, the Security Forces Desk Sergeant will attempt to locate the owner of the POV and have the vehicle removed.

7.3.2. If reasonably feasible, allow another responsible person to drive or tow the POV, if they first have permission from the owner, operator, or person empowered to control the vehicle. In this case, the owner, operator, or person empowered to control the vehicle will be informed that law enforcement personnel are not responsible for safeguarding the POV.

7.4. Impoundment and towing of vehicles is justified when any of the following conditions exist:

7.4.1. Impound and tow POVs for appropriate violations of the SJAFB installation traffic code or involvement in criminal activities under the direct supervision of Security Forces personnel.

7.4.2. The POV is illegally parked:

7.4.2.1. On a street or bridge, or is double parked, and interferes with the orderly flow of traffic.

7.4.2.2. On a sidewalk, within an intersection, on a crosswalk, on a railroad track, in a fire lane, or is blocking a driveway, so that the vehicle interferes with operations or creates a safety hazard to other roadway users or the general public (vehicle parked within 15 feet of a fire hydrant or blocking a properly marked driveway of a fire station or aircraft-alert crew facility).

7.4.2.3. When blocking an emergency exit door of any public place (installation theater, club, dining facility, medical clinic, and or other facilities).

7.4.2.4. In a tow away zone that is marked with proper signs.

7.4.2.5. Blocking a fire hydrant and fire lanes.

7.4.2.6. Posing a safety hazard.

7.4.3. The POV interferes with:

7.4.3.1. Street cleaning or snow removal operations and attempts to contact the owner have been unsuccessful.

7.4.3.2. Emergency operations during a natural disaster or fire or must be removed from the disaster area during cleanup operations.

7.4.3.3. The safe flow of traffic.

7.4.4. The POV has been used in a crime or contains evidence of criminal activity.

7.4.5. The owner or person in charge has been apprehended and is unable or unwilling to arrange for custody or removal.

7.4.6. The POV is mechanically defective and is a menace to others using the public roadways.

7.4.7. The POV is disabled by a traffic incident and the operator is either unavailable or physically incapable of having the vehicle towed to a place of safety for storage or safekeeping.

7.4.8. Law enforcement personnel reasonably believe the vehicle is abandoned.

7.5. Procedures for Impoundment:

7.5.1. Abandoned Vehicles/Unattended POVs.

7.5.1.1. After placing a DD Form 1408 on a suspected abandoned vehicle, the owner of the vehicle will have 24 hours to contact the Emergency Communications Center (ECC) for further instructions.

7.5.1.1.1. If no contact from the owner is received within 72 hours of placing a DD Form 1408, on duty patrol will complete DD Form 2504 and place it in a plastic protective covering. The patrol will conspicuously place the notice on the vehicle over the driver's side windshield. Only the 4 SFS Investigations, 4 SFS Operations Superintendent, or higher authority may contact the Goldsboro City Code Enforcement Office to have a vehicle towed. The procedures for towing, storing, and protecting impounded vehicles will be IAW Goldsboro City Code Enforcements.

7.5.1.1.2. The patrol will make reasonable attempts to identify the owner of the vehicle by use of Pass and Registration and the Department of Criminal Information (DCI) System. If the owner of the vehicle cannot be contacted or identified, the DD Form 2504 will be referred to the 4 SFS/S2I. The owner will have three (3) days from the date the vehicle was issued a DD Form 2504 to move the vehicle to an authorized location or contact S2I to make arrangements to remove the vehicle.

7.5.1.2. Once notified, S2I will attempt to contact the vehicle owner and document the attempts by attaching Case Notes to the DD Form 2504. At a minimum, S2I will conduct a DCI/National Criminal Information Computer (NCIC) check of the Vehicle Identification Number (VIN) and license plate of the vehicle to obtain ownership information.

7.5.1.3. 2I will contact the Goldsboro City Code Enforcement Office at (919) 739-7432, and arrange for removal of the vehicle from the installation for the following reasons:

7.5.1.3.1. All attempts to contact the vehicle owner have failed.

7.5.1.3.2. The owner does not remove the vehicle.

7.5.1.3.3. The owner does not contact S2I within 3 days.

7.5.1.4. If a contracted wrecker service is used, a DD Form 2505, *Abandoned Vehicle Removal Authorization,* will be completed and issued to the contractor by responding 4 SFS personnel.

7.5.1.5. An inventory listing personal property will be done to protect the owner, law enforcement personnel, the contractor, and the commander.

7.5.1.6. The contents of a closed container such as a suitcase inside the vehicle need not be inventoried. Such articles should be opened only if necessary to identify the owner of the vehicle or if the container might contain explosives or otherwise present a danger to the public. Merely listing the container and sealing it with security tape will suffice.

7.5.1.7. After the vehicle has been removed, 4 SFS personnel will complete a DD Form 2506, *Vehicle Impoundment Report,* as a record of the actions taken.

7.5.1.8. The DD Form 2507, *Notice of Vehicle Impoundment*, will be forwarded by certified mail to the address of the last known owner of the vehicle to advise the owner of the impoundment action and request information concerning the owner's intentions pertaining to the disposition of the vehicle.

7.5.1.9. A detailed blotter entry will be accomplished in all instances where a vehicle is towed off the installation subject to this instruction.

7.5.1.10. Once the vehicle is towed, any claim made as to the ownership/responsibility of the vehicle will be conducted through the Goldsboro Police Department. Owners of vehicles which have been towed are subject to fees and fines imposed by the City of Goldsboro.

7.6. Towing and Storage:

7.6.1. Towing and storage will be in accordance with DAFI 31-218 and this instruction.

7.6.1.1. Towing. A tow bar or wrecker will be used when towing another vehicle on-base, towing by rope, strap, chains or similar devices is prohibited.

7.6.2. Storage. Temporary impoundment and towing of POVs for violations of SJAFB Traffic Code or involvement in criminal activities will be accomplished under the direct supervision of law enforcement personnel.

7.6.2.1. SJAFB does not possess the capabilities to store impounded vehicles. Owners of impounded vehicles are directed to contact GPD Records Section.

7.6.3. Stolen POVs or Vehicles Involved in Criminal Activity:

7.6.3.1. Keep vehicles in Air Force custody when holding them for evidentiary purposes.

7.6.3.2. Release recovered stolen POVs to the registered owner, unless held for evidentiary purposes, or to the law enforcement agency reporting the vehicle stolen, as appropriate.

7.7. Vehicle Repossession:

7.7.1. In the event that a vehicle stored on SJAFB is scheduled for repossession due to failure of making financial obligations, a Repossession Order is required to legally repossess a vehicle.

7.7.2. SJAFB is a proprietary jurisdiction meaning that repossession may occur.

7.7.3. Proof of repossession action, through court order paperwork, must outline the address of the vehicle(s) and the name of the person, from whom the vehicle(s) are being repossessed.

7.7.4. 4 SFS or subject's chain of command are the only two agencies that can sponsor repossessing personnel onto the installation.

7.7.5. Coordination through 4 SFS is required for escort to repossess listed vehicle(s).

7.7.5.1. The escorting 4 SFS Patrol is required to obtain all pertinent information to be listed in detailed blotter entry.

7.7.6. Repossessed vehicles will be stored off of SJAFB.

7.7.6.1. Subjects who have vehicle(s) repossessed on SJAFB should make contact with repossessor or lender to determine schedule of payments to be made.

7.8. Search Incident to Impoundment Based on Criminal Activity:

7.8.1. Search of a POV in conjunction with impoundment based on criminal activity will likely occur in one of the following general situations:

7.8.1.1. The owner or operator is not present. This situation could arise during traffic and crime-related impoundments and abandoned vehicle seizures. Do not search the vehicle unless evidence or contraband is in plain view or is readily discernible on the outside as evidence of criminal activity. When in doubt, obtain proper search authority before searching.

7.8.1.2. The owner or operator is present. This situation can occur during a traffic or criminal incident or if the operator is apprehended for a crime or serious traffic violation and sufficient probable cause exists to seize the vehicle. In some cases, the operator is present but is unwilling, incapacitated, or otherwise unable to make adequate arrangements to safeguard the vehicle. As a general rule, vehicles may be searched without search authority when there is a reasonable danger to police or public, there is a risk of loss of destruction of evidence, or the search complies with the rules governing search incident to apprehension.

7.9. Disposition of Vehicles After Impoundment:

7.9.1. If a POV is impounded for evidentiary purposes, the vehicle can be held for as long as the evidentiary or law enforcement purposes exist. The vehicle must then be returned to the owner without delay unless directed otherwise by competent authority.

7.9.2. If the vehicle is unclaimed after 120 days from the date notification was mailed to the last known owner or the owner released the vehicle by properly completing DD Form 2505, the vehicle will be disposed of by one of the following procedures:

7.9.2.1. Release to the lien holder, if known.

7.9.2.2. Process as abandoned property in accordance with DOD 4160.21-M.

7.9.2.2.1. Property may not be disposed of until diligent effort has been made to find the owner; or the heirs, next of kin, or legal representative of the owner.

7.9.2.2.2. The diligent effort to find one of those mentioned in **paragraph 7.9.2**.

7.9.2.2.3. Shall begin no later than 7 days after the date on which the property comes into custody or control of the law enforcement agency.

7.9.2.2.4. The period for which this effort is continued may not exceed 45 days.

7.9.2.2.5. If the owners are determined, but not found, the property may not be disposed of until the expiration of 45 days after the date when notice, giving the time and place of the intended sale or other disposition, has been sent by certified or registered mail to that person at his or her last known address.

LUCAS J. TEEL, Colonel, USAF
Commander, 4th Fighter Wing

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DAFI 13-213, *Airfield Driving,* 4 Feb 2020

AFI 24-301, *Ground Transportation,* 22 Oct 2019

AFI 31-115, *Law and Order Operations,* 18 Aug 2020

AFMAN 31-101Volume 1, *Integrated Defense (ID) Planning,* 2 Nov 2021

AFI 31-118, *Security Forces Standards and Procedures,* 18 Aug 2020

AFI 31-218, *Air Force Motor Vehicle Traffic Supervision,* 22 May2006

AFI 33-322, *Records Management and Information Governance Program,* 28 Jul 2021

AFI 90-802, *Risk Management,* 1 Apr 2019

AFI 91-207, *The US Air Force Traffic Safety Program,* 26 July 2019

SJAFBI 11-250, *Airfield Operations,* 9 May 2017

DoDI 4500.36, *Acquisition, Management, and Use of Non-Tactical Vehicles (NTVs),* 11 Dec 2012

DoDD 5525.4, *Enforcement of State Traffic Laws on DoD Installations,* 2 Nov 1981

DoD 4160.21-M, *Disposal of Property,* 18 Aug 1997

DoDI 6055.04, *DoD Motor Vehicle and Traffic Safety,* 20 Apr 2009

Motor Vehicle Laws of North Carolina/North Carolina General Statutes, Motor Vehicle Act of 1937

Prescribed Forms

DD Form 1408, *Armed Forces Traffic Ticket*

DD Form 1920, *Alcohol Influence Report*

DD Form 2504, *Abandoned Vehicle Notice*

DD Form 2505, *Abandoned Vehicle Removal Authorization*

DD Form 2506, *Vehicle Impoundment Report*

DD Form 2507, *Notice of Vehicle Impoundment*

AF Form 75, *Visitor Pass*

AF Form 1176, *Authority to Search and Seize*

AF Form 332, *Base Civil Engineer Work Request*

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and acronyms

4 FW/CC—4th Fighter Wing Commander

AAFES—Army and Air Force Exchange Service

ADAPT—Alcohol and Drug Abuse Prevention and Treatment Program

AF—Air Force

AFI—Air Force Instruction

AFJIS—Air Force Justice Information System

AFRIMS—Air Force Records Information Management System

AFOSI—Air Force Office of Special Investigation

ANSI—American National Standards Institute

ATV—All-Terrain Vehicles

BAC—Blood Alcohol Content

BAT—Blood Alcohol Test

BrAC—Breath Alcohol Concentration

BS—British Standard

CC—Commander

CD—Commander's Deputy

CES—4th Civil Engineering Squadron

DFC—Defense Force Commander

CSPSC—Consure Product Safety Commission

DCI—Department of Criminal Information

DD—Department of Defense

DMV—Department of Motor Vehicles

DoD—Department of Defense

DOT—Department of Transportation

DWI—Driving While Impaired/Intoxicated

FST—Standardized Field Sobriety Tests

FSS—Force Support Squadron

FW—4th Fighter Wing

GOV—Government vehicle

GPD—Goldsboro Police Department

IECP—Installation Entry Control Point

JA—Judge Advocate

LMR—Land Mobile Radios

MFH—Military Family Housing

4 MSG—Mission Support Group

4 MSG/CC—Mission Support Group Commander

4 MSG/CD—Deputy Mission Support Group Commander

MWR—Morale, Welfare, and Recreation

NCGS—North Carolina General Statutes

NCOIC—Non-Commissioned Officer in Charge

NCSHP — North Carolina State Highway Patrol

NHTSA—National Highway Traffic Safety Administration

NLT—No Later Than

OPR—Office of Primary Responsibility

PCS—Permanent Change of Station

POV—Privately Owned Vehicle

PPE—Personal Protective Equipment

RDS—Records Disposition Schedule

RV—Recreation Vehicles

S5P—4th Security Forces Squadron Plans and Programs

S5R—4th Security Forces Squadron Reports and Analysis Section

SE—Safety

SF—Security Forces

SFI—Security Forces Investigations

SFS — Security Forces Squadron

SJA—Staff Judge Advocate

UNECE—- United Nations Economic Commission for Europe

UTV—Utility Terrain Vehicle

VCC—Visitor Control Center

VCNCO—Vehicle Control Non-commissioned Officer

VIN—Vehicle Identification Number

Attachment 2

SUSPENSIONS/REVISIONS OF SEYMOUR JOHNSON AFB

Table A2.1. Driving Privileges Suspensions

Offense	**Suspension**
Exceeding speed limit by 5-9 mph in base housing	N/A
Exceeding speed limit by 10-14 mph in base housing	30 days
Exceeding speed limit by 15 mph or more in base housing	90 days
Exceeding speed 20 mph or more on base	6 Months
Offense	**Suspension**
First noncompliance with restraint or safety device requirements.	N/A
Second noncompliance with restraint or safety device requirements within 24 consecutive months	30 days
Third noncompliance with restraint or safety device requirements within 24 consecutive months	60 days
Offense	**Suspension**
First noncompliance with policy not to operate a motor vehicle while using a cell phone without a hands free device.	N/A
Second noncompliance with policy not to operate a motor vehicle while using a cell phone without a hands free device within 24 consecutive months	30 days
Third noncompliance with policy not to operate a motor vehicle while using a cell phone without a hands free device within 24 consecutive months	90 days
Offense	**Suspension**
Accumulation of 12 traffic points within 12 consecutive months	180 days
Accumulation of 18 traffic points within 18 consecutive months	1 year
Three non-moving violations within any 6 month period	90 days
Offense	**Suspension**
No financial responsibility (owner of a vehicle may not operate or allow his vehicle to be operated without insurance)	30 days
Offense	**Suspension**
Any personnel who are arrested/charged with Reckless Driving on base will be suspended.	6 months
Active Duty personnel who are convicted of Reckless Driving off base will be suspended.	6 Months

Attachment 3

MOTOR VEHICLE LAWS OF NORTH CAROLINA (ASSIMILATED UNDER TITLE 18 USC 0013 OR ADOPTED BY 32 CFR 210) (USE FOR BOTH MILITARY AND CIVILIAN OFFENDERS)

Table A3.1. A. Emissions, Insurance, License, Registration, Title, & Inspection

General Statute	**Offense**	**SJAFB Points Assessed**
20-183.8(a)(1)	Failure to display valid inspection sticker (if registered in NC – new purchases have 30 days) (C)	N/A
20-183.8(c)	Forging an inspection sticker	N/A
General Statute	**Insurance**	**SJAFB Points Assessed**
20-313.1(a)	Making false certification or giving false information concerning financial responsibility	1 yr Suspension
20-313(a)	No financial responsibility (owner of vehicle may not operate or allow his vehicle to be operated without insurance - applies	30-days Suspension
General Statute	**License**	**SJAFB Points Assessed**
20-32	Allowing an unlicensed minor (under 18) to operate a motor vehicle	6 mo Suspension
20-34	Allowing your vehicle to be driven by a person who has no legal right to do so (unlicensed person)	6 mo Suspension
20-30(6)	Copying or otherwise reproducing a license or permit	6 mo Suspension
20-30(2)	Counterfeiting, selling or lending a license or permit	6 mo Suspension
20-30(1)	Displaying or possessing a license or learner's permit knowing it to be fictitious, canceled, revoked, suspended, or altered	6 mo Suspension
20-7(e)	Driving against restrictions or limitations (if violation of limited driving privileges, charge under 20-28(a))	6 mo Suspension
20-28(d)	Driving while license disqualified (commercial motor vehicle license)	2 yr Suspension
20-28(a)	Driving while license suspended, revoked, or in violation of limited driving privilege	2 yr Suspension
20-7(f)	Expired driver's license	1 yr Suspension
20-30(3)	Misrepresenting another person's license or permit as own	6 mo Suspension

20-37.12	No commercial driver's license or improper license for class of vehicle	N/A
20-7a	No driver's license, improper license for the class of vehicle, or failure to carry license while driving (no commercial license charged under 20-37.12)	1 yr Suspension
20-7(a1)	No Motorcycle License or Motorcycle Endorsement	N/A
20-10.1	Operation of moped by person under 16	N/A
20-29	Refusal by operator to produce license and provide name & address to police officer or other person; providing false information	N/A
20-30(7)	Selling reproduction of a license	6 mo Suspension
20-7(L)	Violation of provisions of learner's permit	N/A
General Statute	**Registration / Title**	**SJAFB Points Assessed**
20-71(a)	Altering or forging a certificate of title or registration	N/A
20-57(c)	Failure to carry registration card	N/A
20-63(e)	Failing to clean registration plate upon request of an officer	N/A
20-111(3)	Giving, lending, or borrowing a license plate	N/A
20-111(2)	Knowingly displaying or possessing a registration card, certificate of title, or plate which is fictitious, canceled, revoked, suspended, or altered or willfully displaying an expired plate knowing it to be expired	N/A
20-111(1)	Operating unregistered vehicle or not displaying a current registration plate	N/A
20-79(e)(1)	Operating a vehicle with improper dealer plates	N/A
20-71(b)	Possession of blank NC certificate of title	N/A
20-63(g)	Willfully altering, disguising, covering or concealing numbers on a registration plate	N/A
20-63(f)	Willfully operating a vehicle with altered, forged, or repainted plates	N/A
	B. Fraud / False Reports / Failure to Obey / Attempted Vehicle Theft	**SJAFB Points Assessed**
20-109	Changing vehicle ID numbers (charged as federal offense under 18 USC 511)	N/A
20-107(b)	Climbing into vehicle with intent to steal or damage it or commit any crime tampering with brakes or starting mechanisms	N/A
20-71.4(a)	Failure to disclose 25% damage of vehicle upon transfer of vehicle to another	N/A

20-114.1(a)	Failure to obey a law enforcement or traffic control officer	N/A
20-108	Knowingly buying, receiving, selling or possessing any motor vehicle or part thereof which has ID number or mark thereon removed, covered, or defaced	N/A
20-102.1	Making false report of theft or conversion of motor vehicle	N/A
20-279.31	Providing false information required in a report of a reportable accident, knowing or having reason to believe the information is false	N/A
20-106	Receiving or transferring stolen vehicles	N/A
20-107(a)	Willfully tampering with or removing parts from vehicle without owner's consent	N/A
20-166(b)	Accident—Failure of driver involved in accident to render any assistance to injured persons and furnish his name, address, driver's license number and license plate number to the other driver(s)	N/A
General Statute	**C. General Moving Violations**	**SJAFB Points Assessed**
20-166.1(a)	Accident—Failure to report an accident to a law enforcement agency ASAP	N/A
20-166(c1)	Accident—Failure to report damage to an unattended motor vehicle to the police or leave a note on such vehicle	N/A
20-166(a)	Accident—Failure to stop when driver knows or reasonably should have known that he was involved in accident or collision and it resulted in injury or death	1 yr Suspension
20-166(c)	Accident—Fleeing the scene of a traffic accident which has resulted in property damage only, or in the injury or death of another person and the driver did not have reason to believe that those injuries resulted	1 yr Suspension
20-141.4(a)(2)	Accident—Misdemeanor death by motor vehicle (unintentional death caused by any violation of motor vehicle law)	1 yr Suspension
20-160(b)	Driving on sidewalk or sidewalk area	6 points
20-157(d)	Emergency vehicle—Driving over a fire hose or blocking firefighting apparatus from its source of water supply	4 points
20-157(a)	Emergency vehicle—Failure to pull to the right and stop upon approach of an emergency vehicle operating its emergency lights and/or siren (not applicable on divided, four-lane highways)	4 points
20-157(c)	Emergency vehicle—Following fire vehicle closer than 400 feet or parking within 400 feet of such vehicle when stopped in response to fire alarm	4 points
20-181	Failure to dim headlights	N/A
20-142.1(a)	Failure to obey railroad crossing signal	4 points

20-152(a)	Following too closely	6 points
20-141(h)	Impeding the normal and reasonable flow of traffic (not including farm tractors or other heavy equipment)	3 points
20-165.1	Lanes—Driving against one-way traffic	3 points
20-146(d)(1)	Lanes—Failure to maintain lane when roadway is divided into 2 clearly marked lanes	3 points
20-146(a)	Lanes—Failure to remain on right side of roadway unless making a legal movement	3 points
20-146(b)	Lanes—Failure to remain right when traveling below the legal speed limit	3 points
20-147	Lanes—Failure to remain right while crossing intersection or railroad crossing	3 points
20-146.1(b)	Lanes—Motorcycles will not travel more than 2 abreast in a single lane	3 points
20-140.3(2)	Making a left, semicircular, or U-turn when there is no opening provided for that purpose in the dividing curb, separation, or line on controlled-access highways	3 points
20-140.4(a)(1)	Operating a motorcycle or moped with more persons that it is designated to carry	3 points
20-149(a)	Passing vehicle must be 2 feet to the left and safely clear before returning to the right	4 points
20-150(a)	Passing when left side is not clearly visible or free of oncoming traffic for sufficient distance to pass safely	4 points
20-149(b)	Passing—Overtaken vehicle must give right of way and not speed up -If no injuries or damage -If bodily injury or property damage -If serious bodily injury	4 points 6 points 6 points 6 points
20-148	Passing—Vehicles will pass to the right of each other when traveling in opposite directions	4 points
20-140(a)	Reckless driving by manner—driving a vehicle carelessly and heedlessly in willful or wanton disregard of the rights or safety of others	6 points/6 mo Suspension (minimum)
20-217(a)	School bus—Passing a stopped school bus displaying mechanical stop signals (bus must be marked – does not apply to divided highways)	4 points
20-142.3	Stop—Certain vehicles required to stop at railroad crossing (school bus, HAZMAT vehicle)	3 points
20-158(b)(1)	Stop—Failure to come to a complete stop at a posted stop sign at intersection	4 points
20-158(c)(1)	Stop—Failure to stop at stop sign (other than at intersections, parking lot or side street)	4 points
20-158(b)(3)	Stop—Failure to stop and yield at flashing red light at intersection	4 points
20-158(c)(3)	Stop—Failure to stop at flashing red light (other than at intersection)	4 points

20-158(c)(2)	Stop—Failure to stop at red light (other than at intersection, at crosswalk)	4 points
20-158(b)(2)	Stop—Failure to stop for red light or failure to yield to on-coming traffic when turning right on red	4 points
20-142.5	Obstruction of crosswalk or railroad crossing	4 points
20-158(b)(5)	Stopping over stop line, crosswalk, or road intersection	4 points
20-153(c)	Turning—Failure to obey traffic control devices that indicate how to turn (to include law enforcement official)	4 points
20-153(b)	Turning—Improper left turn at intersection	3 points
20-153(a)	Turning—Improper right turn at intersection	3 points
20-154(a)	Unsafe movement from parked position, including unsafe backing	3 points
20-173(a)	Yield—Failure to yield right of way to pedestrian in crosswalk (without traffic control devices) or near any road intersection	4 points
General Statute	**D. Impaired Driving / Alcohol Offenses**	**SJAFB Points Assessed**
20-141.4(a1)	Felony death by motor vehicle (unintentional death caused by impaired driver)	6 points 1 yr Suspension
20-138.5	Habitual impaired driving (3 previous DWIs within the past 7 years)	2 yr Suspension
20-138.1	Impaired driving	6 points/1 yr Suspension
20-138.2	Impaired driving in commercial vehicle (.04 or higher) (also charge 20-138.1 if over .08 - it is not LIO)	6 points/1 yr Suspension
20-179	Impaired driving—Sentencing	6 points/1 yr Suspension
20-12.1	Impaired instruction (.08 BAC or higher while allowing person with learner's permit to drive)	6 points/1 yr Suspension
20-138.7	Open container of alcohol—Driver: Two elements: 1) open container of alcohol in passenger area, and 2) driver is consuming alcohol or alcohol remains in his body. (Note: mere odor of alcohol is insufficient, unless driver refuses breath test.)	6 points
NCGS18B- 401(a)	Open container of alcohol—Passenger: Passenger in possession of open container of liquor or fortified wine	6 points
20-138.3	Underage drinking and driving—driving by person less than 21 years old after consuming alcohol or drugs (any BAC level) (also charge 20-138.1 if over .08)	6 points/1 yr Suspension
General Statute	**Inoperable Equipment / Loads / Towing**	**SJAFB Points Assessed**
20-130.1(c)	Blue lights—unlawful use	3 points
20-124(c)	Brakes—unsafe	3 points

20-123(c)	Chains—no safety chains for ball hitch trailer	3 points
20-135.2B(a)	Child under 12 in bed of pickup truck without an adult	3 points
20-129(a)(1)	Failing to have lights on from sunset to sunrise	3 points
20-129(a)(4)	Failing to have lights on when windshield wipers are in use due to rain, fog, etc.	3 points
20-131	Headlamps—improperly adjusted	3 points
20-129(b)	Headlamps—inoperable	3 points
20-130(b)	Headlamps—inoperable headlamp on motorcycle or unlit during operation	3 points
20-129(a)(2)	Headlamps—operation of vehicle without headlamps or rear lamps when visibility is less than 400 feet	3 points
20-125(a)	Horn or warning device—using horn for other than a reasonable warning or making any unnecessary loud or harsh sound by horn or other warning device; inoperable	3 points
20-116(c)	Load—no vehicle, with or without load, may exceed 13 feet, 6 inches	3 points
20-140.2	Load—overloading or overcrowding a vehicle	3 points
20-116(b)	Load—passenger vehicle load may not extend past left fender nor extend more than 6 inches past the right fender	3 points
20-116(f)	Load—vehicle load may not extend more than 3 feet beyond the front bumper of the vehicle	3 points
20-116(g)	Load—vehicle load must be secured so that the contents will not drop, shift, leak, or otherwise escape from the load compartment. If vehicle is hauling sand, gravel, etc., the level must be at least 6 inches below the top of the load area or must be covered	3 points
20-117	Load—vehicle with load extending more than 4 feet must have red flag (12‖ square, min) or red light (visible at 200 feet) attached to the end of the load	3 points
20-126(b)	Mirrors—no driver's side mirror	3 points
20-126(c)	Mirrors—no motorcycle rear view mirror	3 points
20-126(a)	Mirrors—no rear view mirror	3 points
20-140.4(a)(1)	Motorcycles—exceeding the number of persons on a motorcycle that it was designed to carry	6 points
20-140.4(a)(2)	Motorcycles--operating or riding on motorcycle without a helmet	6 points
20-128(a)	Muffler or exhaust—driving vehicle when muffler not in sufficiently good working order to prevent excessive noise or smoke inoperable	2 points
20-136.1	Operable TV in front seat	3 points
20-137.2	Operating a vehicle resembling a law enforcement vehicle	N/A

20-129(d)	Rear lamps—inoperable rear lamp, license plate light, or broken lens (C)	3 points
20-130.3	Rear lamps—unlawful display of white lights on rear of vehicle (not including backup lights) while vehicle is moving forward	2 points
20-130.1(a)	Red lights—unlawful display	2 points
20-135.2A(a)	Seatbelts—driver or passenger not wearing seat belt	4 points
20-137.1(a)	Seatbelts--children under 4 years of age must be secured in car safety seat , children between 4 and 12 must be in seat belt	4 points
20-135.3	Seatbelts--less than 2 sets of seatbelts in back seat (vehicles made after Jul 1966)	4 points
20-135.2(a)	Seatbelts—less than 2 sets of seatbelts in front seat (vehicles made after Jan 64)	4 points
20-128.1(a)	Smoke emissions—emitting visible smoke emissions for more than 5 seconds from gas powered vehicle	N/A
20-136	Smoke screen—creating a smoke screen	N/A
20-123.2	Speedometer—inoperable	2 points
20-130(a)	Spot lamps—vehicle may have no more than 2, motorcycle no more than 1, must be aimed so beam does not cross center of road or light area more than 100 feet ahead	2 points
20-123.1	Steering mechanism—unsafe	2 points
20-129(g)	Stop lamps—inoperable (vehicles made after Dec 1955)	2 points
20-122.1	Tires—unsafe	2 points
20-127(b)	Window tinting improper (exceeds 35% visibility)	N/A
20-127(a)	Windshield wipers—none or inoperable	2 points
General Statute	**Parking**	**SJAFB Points Assessed**
NCGS 14-4(b)	Parking in violation of ordinance (basic improper parking violation)	N/A
20-161(a)	Parking a vehicle on any main-traveled portion of a highway outside municipal limits when such vehicle is not disabled to such extent that it cannot be moved	N/A
20-157(e)	Parking a vehicle within 100 feet of a police, fire, or rescue vehicle which is engaged in investigation of accident or rendering assistance	N/A
20-162(b)	Parking in a fire lane	N/A
20-37.6(e)(1)	Parking in designated handicapped parking space without displaying permit	N/A
20-37.6(e)(3)	Parking so as to block or obstruct any curb or ramp designated for use by handicapped persons	N/A

20-162(a)	Parking within 15 feet of a fire hydrant or entrance to fire station, 25 feet from an intersection, or in front of a private driveway	N/A
20-37.6(e)(2)	Unauthorized use of handicapped permit	N/A
General Statute	**Pedestrian Offenses**	**SJAFB Points Assessed**
20-172	Failure of pedestrian to obey traffic control signs	N/A
20-174(a)	Failure of pedestrian to yield right of way to vehicles upon roadway when crossing in other than marked crosswalk or at intersection	N/A
General Statute	**Speeding Offenses**	**SJAFB Points Assessed**
20-141(m)	Failure to decrease speed to avoid a collision	1 point
20-141(h)	Impeding the normal and reasonable flow of traffic (not including farm tractors or other heavy equipment)	3 points
20-141.3(a)	Racing—prearranged racing	6 points
20-141.3(c)	Racing—authorizing or knowingly permitting one's vehicle to be used in a prearranged speed competition	6 points
20-141.3(b)	Racing—willful speed competition (not prearranged)	6 points
20-140(b)	Reckless driving by speed—driving without due caution and circumspection and at a speed or in a manner so as to endanger or be likely to endanger any person or property (use only for speed in excess of 25 mph over speed limit)	6 Points/6 mo Suspension (minimum)
20-141(a)	Speeding—driving at a speed greater than reasonable or prudent for existing conditions 1-10 mph over posted speed limit 11-15 mph over posted speed limit 16-20 mph over posted speed limit 21 mph or greater over posted speed limit	3 points 4 points 5 points 6 points
20-141(e)	Speeding above fixed limits (1-15mph over) 1-10 mph over posted speed limit 11-15 mph over posted speed limit 16-20 mph over posted speed limit work 21 mph or greater over posted speed limit	3 points 4 points 5 points 6 points
20-141(j2)	Speeding in posted work zone (Sign must be posted at the beginning of the work zone denoting the maximum penalty and the fact that the area is a work zone‖, and a sign must be posted at the end of the area, signifying where the work zone‖ ends)	6 points